

LEAVE AND LICENSE AGREEMENT

THIS LEAVE AND LICENSE AGREEMENT is made on **___ Month 2026** between **Patel**

Mitalben Riteshkumar, Age :- 37 years, Resident at- Sai Elegance , Bungalow No- 22 , Village-Kasindra, Ta-Daskroi, Dist-Ahmedabad 382210, Gujarat (hereinafter to as the "LICENSOR" which expression shall unless excluded by the or repugnant to the content including his / her / their heirs, successors, executors, administrators, legal representative and assigness) of the "ONE PART" and **< Full name of Licensee > Age :- <Age of Licensee> years, Resident at- <Full permanent Address of Licensee>** hereinafter referred to as the "LICENSEE" (Which expression it's successors, executors, administrators, legal representative and assignees) of the "OTHER PART".

THAT THE 'LICENSOR' hereby allows the 'LICENSEE' to use the following described premises located at- **B-302, Aradhana 7 Storey, VIP Road, Shela, Ahmedabad- 380057, Gujarat** COMPRISING OF **3BHK Flat. "2 wardrobes, 2 double beds with mattresses, 5 light fan, Modified Kitchen, TV cabinet.**

NOW THE DEED WITNESSETH AS FOLLOWS:

1. LICENCE FEE :

That the Licensee shall pay to the Licensor of the premises, the monthly License fee of Rs. **27000- (Rupees Twenty Seven Thousand) excluding** maintenance payable by every month in between **15th to 20th** of each English Calendar month, as an advance rent for that month.

2. SECURITY DEPOSIT :

Licensee shall pay to the Licensor a non interest bearing security deposit of Rs.**40000- (Rupees Forty Thousand)** which will be refunded by the Licensor against vacating the said premises duly repaired or compensated towards damages or breakages (As per the clause NO.28 of this Agreement) caused to fixtures, furniture and premises and clearing all the outstanding towards Electricity, PNG gas connection, vendor bills, etc. whichever applicable as per this Agreement and producing the copies of payments made to the concerned authorities to the Licensor.

3. **OTHER CHARGES :** That the Licensee shall pay the Electricity Charges separately which will be exclusive of the License fee.
 - a) SOCIETY'S / ASSOCIATION'S **COMMON MAINTENANCE CHARGES** 'That the **LICENSEE shall pay the Society's / Association's Common Maintenance Charges** towards common lighting, sweeping, security, water pumping, bore-well maintenance, lift, parking etc.
 - b) **LOCAL AUTHORITY TAXES :** That the **Licensors shall bear** and pay the **Local Authority taxes** like AUDA charges, Gram Panchayat Taxes, or Municipal Taxes, whichever applicable for the said premises during this Agreement period.
4. **PERIOD :**

That the Leave and License Agreement is granted for a period of **11 months commencing from** , **Month** 2026 and **expiring on** , **Month** 2026 and inclusive of both days.
5. **NOTICE PERIOD:**
 - a) 30 days' notice in writing from Licensee to the Licensors will be sufficient to terminate this agreement and, on such termination, the Licensee will remove itself from the Licensed premises.
 - b) 30 days' notice in writing from the Licensors to the Licensee (in case of Licensee violating any of the terms mentioned in this agreement) will be sufficient to terminate this agreement.
6. **RENEWAL OPTION:**

Licensors shall have an option to renew this Agreement for a maximum of further one term of 11 months. And if this Agreement be renewed further, the License fee may be increase by (10%) cumulatively based on mutual agreement between both parties.
7. That the Licensee shall not sub-let or assign any part or whole of the said premises to anybody during the License period.
8. The Licensee shall not make any alterations, modifications, or additions to the property, whether structural or aesthetic, without the prior written consent of the Licensors. Any modifications made without such consent shall be considered a breach of this agreement, and the Licensors may require the property to be restored to its original condition at the Licensee's expense.
9. That the Licensee shall not carry out any additions to the building layout, fittings or fixtures without the written consent of the Licensors.
10. That the Licensee shall not keep any hazardous or inflammable items / goods etc. in the said premises which is prohibited by the Law.

11. That the Licensee shall not carry out any antisocial activity prohibited under the prevailing Act of Law.
12. That the Licensee shall not create any kind of nuisance / annoyance or hindrance in the said premises or its surrounding neighborhood and the Society / Association's norms, rules and regulations will be binding to the Licensee and its occupant.
13. That the Licensee shall permit the Licensors (giving prior intimation) to enter upon the demises premises for inspection and carry out repairs etc. as and when necessary.
14. The Licensee shall be responsible for the cost of routine maintenance of house, such as any damage to electrical items such as fan and lights, and furniture damages, plumbing related damages, etc and ensuring they are in good working condition.
15. If the Licensee fails to comply on any of the terms mentioned in this Agreement, Licensors shall have the right to terminate this Agreement without giving one month's notice to the Licensee and the Licensee shall be liable to remove itself from the Licensed premises at its own cost and expense.
16. That the said premise is let for purpose of family members ONLY for the residential use of himself/herself.
17. THIS RENT AGREEMENT, OR ANY RIGHTS OR OBLIGATIONS ARISING HEREUNDER, **SHALL NOT BE USED AS COLLATERAL** FOR A LOAN, MORTGAGE, OR ANY OTHER FINANCIAL TRANSACTION. THE LICENSEE AGREES NOT TO USE THIS AGREEMENT, OR ANY PART THEREOF, TO OBTAIN A LOAN OR MORTGAGE FROM ANY FINANCIAL INSTITUTION OR INDIVIDUAL.
18. THIS AGREEMENT IS SOLELY FOR THE PURPOSE OF ESTABLISHING A TENANCY RELATIONSHIP BETWEEN THE PARTIES AND **SHALL NOT BE USED FOR THE PURPOSE OF REGISTRATION, OBTAINING ANY LICENSE,** OR ANY OTHER PURPOSE BEYOND THE SCOPE OF THIS TENANCY AGREEMENT.
19. Upon expiry (unless renewed) or sooner termination of this Agreement to remove itself entitled to use the said premises in terms of this Agreement from the said premises and also to remove all its furniture and other articles and things brought in or up to the said premises by the Licensee in pursuance of this Agreement and to ensure to return the said premises to the Licensors in the same state and condition (subject however to any improvement made with the consent of the Licensors) as they were on the date of this Agreement. There shall be no damages to the premises by Licensee during the things or furniture brought up or brought into the said premises. The Licensors shall recover the damage from the security deposit in case of any after discussing with Licensee.
20. Upon EXPIRY OR PRE-MATURE TERMINATION of this Agreement and BEFORE VACATING the premises:

- a) Licensee shall clear all the dues towards License Fee payable to the Licensor, Electricity Charges, PNG Gas charges, Society's Common Maintenance Charges, Local Authority Taxes etc. whichever applicable as per this Agreement.
 - b) Licensee shall also ensure to return all the fixtures, furniture, fittings and amenities provided in the said premises are in good and working condition.
 - c) Licensee shall also clear all the dues and or charges towards any indirect services or amenities like Cable TV, Telephone, Mobile Internet Connection (which are not part of this agreement) but are availed by him for personal use by making use of this document and/or its receipts as his residential address proof of the said premises so that the Licensor or next licensee don't suffer or face any harassment due to such negligence.
 - d) It will be the responsibility of the Licensee to ensure that all the dues towards various small vendors / service providers like Provision store, dhobi / ironing, newspaper, milkmen etc. are also cleared to avoid unnecessary harassment to the next occupant or the Licensor in the future.
 - e) Licensee shall provide his new/next address and contact information to the Licensor take care of any discrepancy arising in future pertaining to this Agreement and the duration he occupied the said premises.
21. It being the express intention of both the parties that this is purely a Leave and License Agreement and nothing herein contained shall constitute any tenancy or sub tenancy between the Licensor and the Licensee.
22. That the Licensor hereby warrants to the Licensee that he is the member of the said Society / Association and is entitled to enter into and execute this Agreement and collect the monthly License Fee as well as the Security Deposit as per this Agreement. The Licensor further warrants that there are no outstanding payments or taxes required to be made to the Society / Association or to anybody or authority or any proceedings pending in connection with the ownership or otherwise of the said premises.
23. The Licensor shall deliver the said premises to the Licensee complete in all respects with fixtures, furniture, fittings and other amenities as agreed (as per the Letter of Understanding LOU if executed) at the time of finalizing the subject premises along with electricity supply and water connection and clearing all the dues towards Electricity, Society / Association's Maintenance Charges, Telephone Bills (If applicable) till commencement of this Agreement.
24. That the Licensor also agree(s) that the Licensee paying the Licensee fee hereby (reserved and performing the conditions herein contained) shall peacefully and quietly possess and enjoy the said premises during the currency of the Agreement without interruption or disturbance by the Licensor.

25. As per the statutory requirement, Licensor shall inform the Police department about letting out his property.
26. In case the Licensee is not able to vacate the said premises upon expiry or sooner termination of this agreement; the Licensee shall have no rights on the above premises and will be considered as a trace-passer and shall have to pay Rs. 1350/- per day towards penalty till he occupies the said premises. Simultaneously, Licensor reserves all the rights to get the said premises vacated availing Police Protection (if required) and it will be binding to the Licensee. Jurisdiction for this premises will be Ahmedabad.
27. Electricity Meter Reading for the at the time of occupying the premises was 000. Licensee shall be liable to pay the electricity charges on pro rata basis for immediate next bill.
28. The licensor has provided the following fixtures, fittings and furniture in the said premises in working condition. At the time of Licensee vacating the said premises all the fragile articles like: All provided furniture, mattresses, curtain rods, electrical fittings, etc., will be returned by the Licensee in good and working condition. Any loss or damage caused to such articles will be replaced / repaired by the licensee at their own cost or else such damages or repairs will be deducted by the Licensor from the Security Deposit. Licensee shall not be responsible for any loss or damage caused due to natural calamities arising by act or God.

The articles and amenities were verified by the Licensee / the occupant on date.

"LICENSOR/S"

Patel Mitalben Riteshkumar

"LICENSEE"

<Licensee Full name>